

**IN THE UNITED STATES DISTRICT COURT  
FOR THE DISTRICT OF UTAH**

MATTHEW OLIVER REARDON,  
Plaintiff, Pro Se,

v.

Civil Action No. 1:25-cv-00041-JCB

CITY OF LAYTON, UTAH, et al.,  
Defendants.

**EMERGENCY RENEWED MOTION TO LIFT STAY DUE TO ESCALATING  
RETALIATION, DOJ COMPLICITY, AND CONTINUING HARM**

TO THE HONORABLE COURT:

Plaintiff Matthew Oliver Reardon, appearing pro se, respectfully renews his urgent request that the Court immediately lift or modify the procedural stay entered on March 31, 2025, which currently prohibits Plaintiff from filing or supplementing the record with newly discovered evidence directly relevant to his claims. This renewed motion is submitted pursuant to the Court's equitable authority to prevent irreparable harm and maintain the integrity of these proceedings under 28 U.S.C. § 1915 and the United States Constitution.

**I. MATERIAL DEVELOPMENTS SINCE MARCH 31, 2025**

1. On March 31, 2025—the same day this Court imposed the procedural stay—Plaintiff was subjected to a retaliatory incident involving agents of the Federal Bureau of Investigation (FBI) at the Salt Lake City Field Office. While attempting to submit a sworn affidavit reporting misconduct and potential federal crimes by named Defendant Captain Hildon Sessums, Plaintiff was:

- Denied the ability to submit his affidavit;
- Ordered to submit to a background check as a precondition;
- Threatened with arrest for trespassing despite standing in a public visitor area;
- Surveilled and recorded by FBI agents who documented his license plate.

2. These events, which Plaintiff previously described in a sworn declaration (Exhibit D), have now been independently corroborated and reported in a publicly available news article published by WTP News titled “DOJ Whistleblower Complaint Ignored.”

3. This article further describes the DOJ’s refusal to investigate or acknowledge Plaintiff’s multiple attempts to report unlawful surveillance, constitutional violations, and cross-jurisdictional retaliation. It supports Plaintiff’s assertion that institutional inaction has emboldened and compounded the retaliation he faces.

4. A true and correct copy of the article is attached as Exhibit E.

## II. ONGOING AND COMPOUNDING HARM

5. As described in Plaintiff’s prior filing (April 8, 2025), the stay now functions as an active impediment to justice—barring Plaintiff from preserving time-sensitive evidence and supplementing his claims despite continued and escalating threats.

6. The publication of the WTP News article is not only probative of public interest in this matter, but confirms the legitimacy of Plaintiff’s warnings: that government agencies have knowingly retaliated against a whistleblower and failed to act on criminal allegations for political or institutional reasons.

7. Plaintiff’s rights under the Crime Victims’ Rights Act, 18 U.S.C. § 3771(e) remain active, including:

- The right to proceedings free from unreasonable delay;
- The right to be heard in public proceedings;
- The right to be protected from further harm by the accused.

### III. RELIEF REQUESTED

WHEREFORE, Plaintiff respectfully requests that the Court:

1. Immediately lift or modify the March 31, 2025 stay to allow:
  - Filing of Plaintiff's April 1, 2025 sworn declaration (Exhibit D);
  - Submission of WTP News article "DOJ Whistleblower Complaint Ignored" (Exhibit E);
  - Filing of Plaintiff's First Amended Complaint;
  - Preservation of any supplemental filings arising from new or ongoing retaliation;
2. Alternatively, permit these materials to be submitted under seal or via chambers delivery, to ensure they are not lost or excluded from the record;
3. Grant such other and further relief as this Court deems just, necessary, and appropriate to prevent further harm and uphold Plaintiff's rights to access the courts.

Respectfully submitted,

/s/ Matthew Oliver Reardon  
Plaintiff, Pro Se  
P.O. Box 160144  
Clearfield, UT 84016  
Email: mreardon@wtpnews.org  
Phone: (385) 350-3998

Dated: April 15, 2025